



CHAPTER vii

An Act to confirm a Provisional Order under the Private
Legislation Procedure (Scotland) Act 1936 relating to
the Scottish American Investment Company Limited.
[2nd June 1960.]

WHEREAS the Provisional Order set forth in the schedule
hereunto annexed has been made by the Secretary of
State under the provisions of the Private Legislation
Procedure (Scotland) Act 1936 and it is requisite that the said
Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty
by and with the advice and consent of the Lords Spiritual and
Temporal and Commons in this present Parliament assembled
and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto
annexed is hereby confirmed. Confirmation
of Order in
schedule.
2. This Act may be cited as the Scottish American Investment
Company Limited Order Confirmation Act 1960. Short title.

SCHEDULE

SCOTTISH AMERICAN INVESTMENT COMPANY LIMITED

Provisional Order to repeal the Scottish American Investment Company Limited Act 1900 and for purposes connected therewith.

Whereas the Scottish American Investment Company Limited (hereinafter called "the Company") was incorporated in the year eighteen hundred and seventy-three under the Companies Acts 1862 and 1867 as a company limited by shares:

And whereas by its memorandum and articles of association the Company was not empowered to create or issue preference shares or preference stock:

And whereas power to issue preference shares and preference stock was conferred on the Company by the Scottish American Investment Company Limited Act 1900 (hereinafter called "the Act of 1900"):

And whereas the authorised and issued capital of the Company is now seven million three hundred and fifty-eight thousand five hundred pounds divided into two million pounds four per centum preference stock seven hundred thousand ten per centum "B" ordinary shares of one pound each and four million six hundred and fifty-eight thousand five hundred "A" ordinary shares of one pound each all of which stock and shares are fully paid up:

And whereas the Act of 1900 specified the voting rights of the holders of preference stock preference shares and ordinary shares respectively in the Company:

And whereas as a result of alterations in the capital of the Company since the enactment of the Act of 1900 the ordinary shares in the Company therein referred to are now known as ten per centum "B" ordinary shares and the four million six hundred and fifty-eight thousand five hundred "A" ordinary shares of one pound each have been created conferring such voting rights as are specified in the articles of association of the Company and the Company being of the opinion that the voting rights of the holders of the preference stock the "B" ordinary shares and the "A" ordinary shares should be more closely related to the interests in the Company of the holders of the respective classes of stock and shares is now desirous (inter alia) of altering the voting rights of the holders of preference stock "B" ordinary shares and "A" ordinary shares in the Company under the powers conferred on the Company by its memorandum and articles of association but is prevented from giving effect to its desire as regards the voting rights of the preference stock and "B" ordinary shares by the limitations imposed on the Company by section 8 of the Act of 1900:

And whereas by reason of the provisions contained in the Companies Act 1948 the powers conferred on the Company under the Act of 1900 to issue preference shares and preference stock are no longer necessary:

And whereas for the foregoing reasons it is expedient that the Act of 1900 should be repealed:

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the Private Legislation Procedure (Scotland) Act 1936:

Now therefore in pursuance of the powers contained in the said Act the Secretary of State orders as follows:—

1. This Order may be cited as the Scottish American Investment Company Limited Order 1960. Short title.

2. The Scottish American Investment Company Limited Act 1900 is hereby repealed. Repeal of Act of 1900.

3.—(1) Notwithstanding anything contained in any other enactment on the coming into operation of this section the voting rights conferred upon the holders of preference stock and ordinary shares (now “ B ” ordinary shares) in the Company by section 8 of the Act of 1900 shall cease and determine. Voting rights.

(2) This section shall come into operation on the date of the coming into operation of this Order or on the date of the passing of a resolution by the Company specifying the voting rights of the holders of preference stock preference shares and “ B ” ordinary shares in the Company whichever be the later.

4.—(1) The Company shall deliver to the Registrar of Companies a printed copy of the Act confirming this Order and he shall retain and register the same and if such copy is not so delivered within three months from the passing of the Act confirming this Order the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur a like penalty. Copy of Order to be registered.

(2) Every penalty under this section shall be recoverable summarily.

(3) There shall be paid to the Registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies Act 1948 on registration of any document other than a memorandum of association.

5. All costs charges and expenses of and incidental to the preparing for obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Company. Costs of Order.

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Limited Order Confirmation Act, 1960

Table of Statutes referred to in this Act

Short title	Session and chapter
Scottish American Investment Company Limited Act 1900	63 & 64 Vict. c. lxxv.
Private Legislation Procedure (Scotland) Act 1936	26 Geo. 5 & 1 Edw. 8 c. 52.
Companies Act 1948	11 & 12 Geo. 6 c. 38.

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